

A.23

Policy/Guideline Title:	Probationary Period Policy		
Executive Summary:	This policy details the probationary period process for all employees of Kettering General Hospital NHS Foundation Trust. A probation period is a period of time where a new employee to Kettering General Hospital NHS Foundation Trust is able to demonstrate their suitability to the Role. Probation periods are necessary to allow the trust to review the overall performance, attendance, behaviours and conduct of new members of staff to ensure that any skill gap or training needs are identified and addressed.		
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A.23: Probationary Period Policy



Compassion



Accountability



Respect



Integrity



Courage

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1. Probationary Period Flow Chart

1. Introduction

This policy details the probationary period process for all employees of Kettering General Hospital NHS Foundation Trust. A probation period is a period of time where a new employee to Kettering General Hospital NHS Foundation Trust is able to demonstrate their suitability to the Role. Probation periods are necessary to allow the trust to review the overall performance, attendance, behaviours and conduct of new members of staff to ensure that any skill gap or training needs are identified and addressed.

The probation period is set as a realistic time period to allow the Line manager to make an objective assessment as to whether the member of staff meets the required standards, assessing their performance and suitability for the post.

All new staff members appointed to posts within Kettering General Hospital NHS Foundation Trust are required to complete a probationary period. The Trust recognises there will be specific roles for example where there will be a need to complete an educational/preceptorship programme, where the probation period may extend beyond 6 months.

The policy will be applied fairly and consistently to all employees whether working full time or part time, the policy will also be applied to all staff whether on a permanent or fixed term contract. Care must be taken to avoid a subjective selective approach with consequent risk of grievances or complaints.

The policy will be applied fairly and consistently to all employees and will use the Trusts core behaviours as a standard to measure against.

2. Purpose

The policy will be applied fairly and consistently to all employees and will use the Trusts core behaviours as a standard to measure against.

This policy applies to all employees working under a contract of employment issued by the Trust with the exclusion of Training Doctors.

This policy should be read with other relevant policies and procedures:

- Capability Policy B.1.B
- Managing Absence Due to Ill Health B.4
- Managing Leavers including internal transfers and incorporating the staff exit interview & questionnaire policy A.19
- Leave in Relation to Starting a Family Policy UHN-PO-HR10
- PRDP Guidance
- Disciplinary Policy and Procedure UHON-HR01

This policy aims to provide a process by which managers of the Trust can follow to ensure a consistent approach to reviewing the suitability of employees to the post to which they have been recruited.

The Trust recognises that satisfactory performance by all of its employees is required to ensure successful and effective delivery of service.

It is the spirit and intention of this policy that, except for cases of gross misconduct or incompetence, no employee should ever be dismissed without first having shortcomings brought to their attention and being given every reasonable opportunity to of improving.

It is implicit that, in operating this procedure, employees are given appropriate training and support in achieving the desired standards of performance.

3. Responsibilities

Responsibilities of Human Resources

- To provide training and professional advice on the application of this policy, with appropriate advice and guidance on the use of this procedure.
- Provide advice and guidance to managers ensuring they are supported appropriately
- Provide guidance to managers before termination of employment is considered
- Assist managers in promoting the highest possible standards of management action in handling performance and capability matters
- To treat all performance and capability matters with impartiality and confidentially

Responsibilities of Line Managers

- Inform individuals about the probationary period at interview and when commencing employment
- To ensure their own familiarity with the policy and procedures.
- To ensure that all new employees are aware of the requirements of the policy and their own individual responsibilities.
- To ensure that all individuals are set clear objectives and understand what the expected standards are during their probationary period and employment with the trust.
- Ensure new employees are provided with appropriate support to achieve the objectives and standards expected of them
- Ensure all training is up to date and the Trust Corporate induction has been completed
- Identify any training and development needs to assist individuals with their role

Responsibilities of All Employees

- To ensure own familiarity with the policy and procedure.
- Performing their required duties in line with their contractual responsibilities
- Engaging with the probationary period policy
- To adhere to the standards of behaviour and conduct required by the Trust and with that of the KGH Promise.
- To adhere to the requirements and purpose of this policy and procedure.

- To bring any matters of concern connected with this policy to the attention of their line manager or other senior manager as appropriate.

4. Definitions

Probationary Period

A probation period is a period of time where a new employee to Kettering General Hospital NHS Foundation Trust is able to demonstrate their suitability to the Role.

5. Processes and Procedures

5.1 Contracts and Notice Periods

The following is included in all contracts issued to staff appointed to the Trust, with exception of those employed on a fixed term contract of 9 months or less whose probation period will be outlined in their contract.

The first 6 months of employment will be a probationary period where an individual's performance, attendance, competence, conduct and behaviour will be assessed. Employment may be terminated during the probationary period at any point by one week's notice either side.

The decision to terminate a contract of employment, and dismiss the employee at a final review meeting can be made at any time within the probationary period where it has been clearly demonstrated that the employee is not capable of carrying out their duties, or their absence, behaviour or conduct is contrary to the standards that the Trust requires, despite support being provided, where appropriate.

On satisfactory completion of the probationary period notice periods to terminate an employment contract will be required as detailed in the employment contract.

5.2 Representation

An employee has the right to be represented at any formal meeting by a trade union official or work colleague not acting in a legal capacity.

5.3 Internal transfers, secondments and promotions

Staff members, who transfer internally, take up a secondment position or who are promoted will not be subject to a probationary period unless they are still within their current probationary period. Staff appointed who have previously worked for the Trust or have held a bank position will be subject to a probationary period.

5.4 Fixed Term Contracts

For employees appointed on fixed term contracts they will be subject to probationary periods as set out in the table below unless otherwise agreed with management and the human resources department.

If an employee is appointed to a permanent role within the trust but previously on a fixed term contract their probationary period will be adjusted. For example, a member of staff has worked 2 months probationary period within a fixed term role they will work 4 months probationary period within the substantive role.

Fixed Term Contract Length	Recommended Probationary Period Length
3 months or less	1 month
Up to 6 months	3 months
Up to 9 months	4 months
12 months or more	6 months

5.5 Assessing Performance

Performance will be assessed by the manager during the employee's probationary period.

To assess the individual's performance the manager must measure the performance against the relevant job description they must also have set clear standards of expected performance required.

5.6 Suspension of the Probationary Period

There may be occasions where an employee maybe absent for periods of time such as sickness absence where it may be necessary for a manager to make a decision to suspend the probationary period until the employee is able to return to work, on commencement back to work the probation period would re-commence.

All suspensions of probationary period will be confirmed in writing the individual, a copy of the letter will be placed on the individual's personal file. Employees should be made aware that all probationary periods must be for a full 6 months.

5.7 Sickness Absence

When assessing whether an individual should continue in post an individual's attendance should be taken into account as a factor. Before taking a decision regarding sickness absence advice should be sought from the Human Resources department.

5.8 Maternity Absence

In the event of a member of staff taking Maternity Leave the probationary period will suspend until the individual returns to work, the probationary period will re-commence on return to work.

5.9 Length of Probationary Period

The appointment of every new member of staff (except training doctors) to a post within the Trust is subject to a 6 month probationary period. For the appointment of a new member of staff on a fixed term contract of less than 6 months the probationary period will be for the duration of their contract and the element.

It is the Managers responsibility to monitor the progress of new employees ensuring training needs are met and keeping the employee informed of their progress.

6. Probationary Review Process

The 6 month probationary period comprises of the following elements

Timescale	Process Stage	Further Details
Within one month of commencing	Objective Setting	Section 6.1
Within three months of commencing	Frist Review Meeting	Section 6.2
No later than two weeks prior to the end of the probationary period	Final Review Meeting	Section 6.4

It is vital that any issues or concerns are dealt with promptly as they arise and appropriate support is given to the new member of staff to assist them to achieve the required standards.

Where the required standards are not being met the line manager should meet with the employee more frequently to address any shortfalls. The concerns should be clearly documented and a copy of the notes given to the employee to ensure that they are clear about the required standards, required improvements and possible outcomes. A copy of the notes should also be placed on their personal file.

If the standards of performance, attendance, behaviours or conduct do not improve, despite appropriate support, the line manager must inform their HR Manager/Advisor to discuss the next steps.

6.1 Objective Setting

New members of staff should set their objectives, with their line manager or another person acting in that capacity, within one month of them commencing in post.

6.2 First Review Meeting

The line manager will carry out this informal review within 3 months of the date of commencement. Its purpose is to:

- Measure and review the employee's performance, absence levels, behaviour and conduct against the job description and other relevant information, such as a appraisal outline

- Review performance against their objectives
- Set any further objectives.

Positive feedback should be given, where applicable, and any areas of concern or required improvements must also be highlighted. The employee must be given an opportunity to ask questions, highlight any issues they may have and make suggestions about any support or training they feel they require.

6.3 Outcome of First Review Meeting

There are three potential outcomes at this first review meeting:

1. Performance, attendance, behaviour and conduct is at (or above) the level required. In these circumstances on-going monitoring will take place until the final review meeting.
2. Performance, attendance, behaviour or conduct is generally satisfactory, but there are areas for improvement. In these circumstances the appropriate support must be organised for the new member of staff to assist them to achieve the required standards. The concerns should be clearly documented and a copy of the notes given to the employee to ensure that they are clear about the required standards and possible outcomes. A copy of the notes should be placed on their personal file. In these circumstances ongoing monitoring and meetings will take place, as required, until the final review meeting.
3. Performance, attendance, behaviour or conduct is below that required. In these circumstances the line manager must make it clear to the employee that this is the case and their continued employment with the Trust could be at risk. The line manager must inform their HR Manager/Advisor to discuss the next steps.

6.4 Final Review Meeting

The line manager will carry out this formal review no later than 2 weeks prior to the end of the probationary period, except in exceptional circumstances whereby an extension to the probationary period can be made and notified to the employee. Examples of exceptional circumstances could include:

- The new member of staff being unable to attend training that is essential to their role due to its cancellation and this has resulted in them being unable to demonstrate their ability against the required standards of performance
- The new member of staff making good progress and the areas for concern being minor or minimal in nature.

The employee must be given at least 5 working days' notice in writing of the need to attend a final review meeting. The letter must also advise that they have the right to be accompanied by either a representative of a trade union/professional organisation or a work colleague not acting in a legal capacity.

The meeting will be conducted by the line manager and they may be supported by a member of Human Resources.

Its purpose is to review the employee's probationary period and to make a final decision regarding the employee's ability against the required standards and the implications for their employment.

6.5 Outcome of Final Review Meeting

There are three potential outcomes:

1. Performance, attendance, behaviour and conduct is at (or above) the level required and the probationary period is confirmed as successful.
2. Performance, attendance, behaviour or conduct is generally satisfactory, but there are areas for improvement. In exceptional circumstances consideration can be given to extending the probationary period, or the contract will be terminated.
3. Performance, attendance, behaviour or conduct is below that required. In these circumstances the contract will be terminated.

6.6 Successful Completion of the Probationary Period

If at the end of the probationary period the employee has reached the required standards of performance, attendance, behaviours and conduct the line manager must confirm this in writing to the employee and place a copy of the letter on their personal file.

6.7 Extending the Probationary Period

In exceptional circumstances consideration can be given to extending the probationary period to allow the employee an opportunity to reach the required standard. If this option is being considered by the line manager, then they must discuss it with their HR Manager/Advisor prior to informing the employee.

If it is decided that an extension is appropriate, then it will be for no longer than 3 months and only one extension will be granted. The extension will need to be confirmed in writing to the employee and a copy placed on their personal file.

6.8 Termination of Contract during or at the End of the Probationary Period (Dismissal)

The decision to terminate a contract of employment and dismiss the employee at a final review meeting can be made at any time within the probationary period. There may be occasions when it is clearly demonstrated that the employee is not capable of carrying out their duties, or their absence, behaviour or conduct is contrary to the standards that the Trust requires despite support being provided (where appropriate) before the end of their probationary period. Advice should be sought from the appropriate HR representative in such cases.

Prior to terminating the contract, the employee must have been made aware that their performance, attendance, behaviour or conduct is jeopardising their continued employment with the Trust. The exception to this is in cases of gross incompetence,

gross misconduct or where there have been serious breaches of the standards of attendance or behaviour required by the Trust, or there is an unacceptable impact on the service and colleagues they work with, for example where colleagues are having to take on additional responsibilities to ensure effective service provision or additional costs are being incurred, the Trust can convene a final review meeting at any time and dismiss the employee without notice (summary dismissal). An employee must be given appropriate notice of the need to attend a final review meeting.

At the meeting the line manager will detail the reasons as to why the employee is not capable of continuing in the role and the measures that have been taken to facilitate improvement. The employee will also be given the opportunity to state his/her case before a decision is made.

Notice period detailed in section 5.1. In these circumstances the employee will be paid in lieu of their notice and any untaken accrued annual leave entitlement, and they will not be required to attend work during their notice period. This does not apply in the case of summary dismissal. In these circumstances the employee would not be entitled to pay for any outstanding contractual annual leave and will only be paid for any outstanding accrued annual leave in accordance with the Working Time Regulations.

In the event of an employee overtaking their annual leave entitlement, this will be deducted from their final salary.

A letter will be sent to the employee advising them of the decision. A copy of this letter must be placed on the individual's personal file.

The reason for leaving will be recorded on the Notification of Leavers Form and ESR as Dismissal – capability.

6.9 Appeals

An employee that is dismissed during their probationary period has the right to appeal against the decision and this must be addressed to their Division Lead. The appeal must be made in writing, stating the grounds for the appeal, and be received within 5 working days of the date of the letter advising of the decision by the relevant manager. Possible grounds for appeal:

- The decision is considered unfair
- New evidence has come to light
- They think the procedure was not followed correctly

The employee will remain dismissed in accordance with the original decision however if they are subsequently reinstated their pay and continuity of service will be backdated to the date of termination.

A meeting will be convened by the senior manager or other senior manager nominated by them who has not previously been involved in the case. They will be supported by a member of Human Resources.

The employee must be given at least 5 working days' notice in writing of the appeal hearing. The letter must also advise that they have the right to be accompanied by either a representative of a trade union/professional organisation or a work colleague not acting in a legal capacity.

The dismissing manager and the individual will be present at this meeting. The decision of the appeal panel shall be final.

7. Training

There is an expectation that all employees of the Trust are responsible for ensuring their own individual awareness of this policy, however briefing sessions for managers and staff will be made available as necessary.

8. Monitoring Compliance with the Document

Monitoring Compliance					
Process to be used for monitoring e.g. audit	Responsible individual / committee for carrying out monitoring	Frequency of monitoring	Responsible individual / committee for review the results	Responsible individual / committee for developing action plan	Responsible individual / committee for monitoring action plan
Audit of WRES and WDES data with regards to probation	Head of OD and Inclusion	Annually	JCNC	Head of OD and Inclusion	People Committee

9. References

Contracts of employment – CIPD Factsheet • ACAS, Guidance starting staff: induction. September 2015

Appendix 1

Probationary Period Flowchart

